

CHAPTER 67.

An Act to amend the Superannuation Acts in their application to officers employed in Prisons and Criminal Lunatic Asylums. [20th November 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The Superannuation Acts, 1834 to 1914, shall, in their application to officers employed in prisons and criminal lunatic asylums of such classes as the Secretary of State, or in Scotland the Secretary for Scotland, or in Ireland the Lord Lieutenant, with the approval in each case of the Treasury, may from time to time prescribe, have effect subject to the following modifications :—

Amendment
of Super-
annuation
Acts in their
application
to prison
officers.

(a) Fifty-five years shall be substituted for sixty years as the age on retirement at which without a medical certificate a superannuation allowance may be granted, and accordingly sections ten and eleven of the Superannuation Act, 1859, shall, in their application to such officers as aforesaid, have effect as if for " sixty years " there were substituted " fifty-five years " :

22 Vict. c. 26.

(b) In calculating the amount of the superannuation allowance or additional allowance of any such officer, the proportion of the annual salary and emoluments to be added in respect of the twenty-first and every subsequent year of service—

(i) in the case of a person to whom section one of the Superannuation Act, 1909, applies, shall, as respects superannuation allowance, be two-eighths instead of one-eighth, and as respects additional allowance be two-thirtieths instead of one-thirtieth ; and

9 Edw. 7. c. 10.

(ii) as respects the superannuation allowance of a person to whom that section does not apply, shall be two-sixtieths instead of one-sixtieth :

Provided that nothing in this section shall affect the maximum amount of the superannuation allowance or additional allowance which may be granted to any such person.

(2) This section shall have effect with respect to the superannuation and additional allowance of officers who have retired at any time since the seventeenth day of September nineteen hundred and eighteen.

Short title.

2. This Act may be cited as the Superannuation (Prison Officers) Act, 1919, and the Superannuation Acts, 1834 to 1914, and this Act may be cited together as the Superannuation Acts, 1834 to 1919.

CHAPTER 68.

An Act to amend the Law relating to the Royal Irish Constabulary and Dublin Metropolitan Police.

[20th November 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Constitution of
representative
police bodies.

1.—(1) For the purpose of enabling the members of the Royal Irish Constabulary and Dublin Metropolitan Police to consider and bring to the notice of the chief officer and of the Lord Lieutenant all the matters affecting their welfare and efficiency, other than questions of discipline and promotion affecting individuals, there shall be established in each force, in accordance with rules made by the Lord Lieutenant, a representative body or bodies for all or each of the ranks below the rank of assistant inspector general in the case of the Royal Irish Constabulary, and for all or each of the ranks below the rank of chief superintendent in the case of the Dublin Metropolitan Police, consisting of representatives elected by the members of the ranks or rank represented from amongst their number in manner prescribed by those rules.

(2) Each representative body shall be entirely independent of and unassociated with any body or person outside the force which it represents.

Prohibition
against
constables
being members
of trade unions.

2.—(1) Subject as aforesaid, it shall not be lawful for a member of either police force to become, or after the expiration of one month from the passing of this Act to be, a member of any trade union, or of any association of which the objects or one of the objects are or is to control or influence the pay, pensions, or conditions of service of any police force ; and any member of either force who contravenes this provision shall be disqualified for continuing to be a member of the force ; and if any member of either force continues to act as such after becoming so disqualified he shall forfeit all pension rights and be disqualified for being thereafter employed in any police force :

Provided that, where a man was a member of a trade union before becoming a member of the force, he may, with the consent of the chief officer, continue to be a member of that union during the time of his service in the force.